



Instructions for Application for Permission to Re-apply for Admission Into the United States After Deportation or Removal

Department of Homeland Security
U.S. Citizenship and Immigration Services

USCIS
Form I-212
OMB No. 1615-0018
Expires 03/31/2027

What Is the Purpose of Form I-212?

If you are inadmissible under the Immigration and Nationality Act (INA) section 212(a)(9)(A) or (C), you must ask for consent to reapply for admission to the United States (consent to reapply) before you can lawfully return to the United States. Consent to reapply is also called “permission to reapply.” You should use this application to seek consent to reapply.

Why Do I Need Consent to Reapply?

If you are inadmissible under INA section 212(a)(9)(A) or (C), you need to obtain consent to reapply for admission to the United States under INA section 212(a)(9)(A)(iii) or (C)(ii). If you need to obtain consent to reapply, it is very important that you do not return to the United States before you have filed an application for consent to reapply, and before the Department of Homeland Security (DHS) has approved it.

Returning unlawfully to the United States without inspection and admission or parole, or without obtaining consent to reapply for admission after having been excluded, deported, or removed, OR after having accrued, in the aggregate, more than one year of unlawful presence in the United States may make you permanently inadmissible to the United States under INA section 212(a)(9)(C).

Additionally, returning to the United States without obtaining consent to reapply when needed or returning unlawfully (such as returning without being inspected and admitted, or by fraud, or any other unlawful means after you have been excluded, deported, or removed) may have significant consequences, including:

1. Reinstatement of your removal order under INA section 241(a)(5);
2. Prosecution in criminal court under INA section 276; and
3. A permanent bar from admission to the United States under INA section 212(a)(9)(C).

Returning to the United States with a visa may not protect you from these consequences if you are required to obtain consent to reapply, but did not get that consent.

These Instructions contain more information about the grounds of inadmissibility and the consequences for failure to obtain consent to reapply in the **Detailed Description of Grounds of Inadmissibility Under INA Sections 212(a)(9)(A) and (C), and Criminal Penalties Under INA Section 276** section of these Instructions.

Who Should File This Application?

You should file this application if you are inadmissible under INA section 212(a)(9)(A) or (C). To determine if one or both of these grounds of inadmissibility apply to you, read below in **Detailed Descriptions of Grounds of Inadmissibility Under INA Sections 212(a)(9)(A) and (C) and Criminal Penalties Under INA Section 276**.

Please be aware that any departure from the United States may make you inadmissible under INA section 212(a)(9)(A) or (C). Traveling abroad with an Advance Parole Document is a departure for purposes of INA section 212(a)(9)(A) or (C).

Inadmissibility Under INA section 212(a)(9)(A)

You will need to file Form I-212 if you are inadmissible under INA section 212(a)(9)(A) because:

1. You either:
 - A. Were actually removed from the United States; or
 - B. Departed the United States on your own after being issued an order of removal (whether administratively final or not); and
2. You seek admission or adjustment of status:
 - A. At any time, if you have been convicted of an aggravated felony; or
 - B. Before you have been outside the United States for a continuous period of:
 - (1) 5 years, if you were removed as an arriving alien, but only once;
 - (2) 10 years, if you were removed other than as an arriving alien, but only once; or
 - (3) 20 years, if you were removed more than once, whether as an arriving alien or not.

You may file Form I-212 if you are inadmissible under INA section 212(a)(9)(A), **but not** INA section 212(a)(9)(C), and you are:

1. An applicant for an immigrant visa;
2. An applicant for adjustment of status under INA section 245 (other than as a T or U nonimmigrant seeking adjustment under Title 8 Code of Federal Regulations (8 CFR) 245.23 or 245.24);
3. An applicant who wishes to seek admission as a nonimmigrant at a U.S. port-of-entry who is not required to obtain a nonimmigrant visa; or

NOTE: U.S. Customs and Border Protection (CBP) has jurisdiction over these applications for consent to reapply. For more information on filing Form I-212 with CBP, consult the CBP website at www.cbp.gov.

4. An applicant for a nonimmigrant visa at a U.S. Consulate.

NOTE: Some applicants who are applying for a nonimmigrant visa may not have to file Form I-212 to obtain consent to reapply for admission. The U.S. Consulate with jurisdiction over your nonimmigrant visa application will advise you on whether and how to file to obtain consent to reapply for admission.

Inadmissibility Under INA section 212(a)(9)(C)

You will need to file Form I-212 if you are inadmissible under INA section 212(a)(9)(C) and you are:

1. An applicant for an immigrant visa;
2. An applicant who wishes to seek admission as a nonimmigrant at a U.S. port-of-entry, but who is not required to obtain a nonimmigrant visa; or

NOTE: CBP has jurisdiction over these applications for consent to reapply. For more information on filing Form I-212 with CBP, consult the CBP website at www.cbp.gov.

3. An applicant for a nonimmigrant visa at a U.S. Consulate.

NOTE: Some applicants who are applying for a nonimmigrant visa may not have to file Form I-212 to obtain consent to reapply for admission. The U.S. Consulate with jurisdiction over your nonimmigrant visa application will advise you on whether and how to file to obtain consent to reapply for admission.

Even if you are in one of the categories of applicants listed above, you **may not** file an application for consent to reapply if you are inadmissible under INA section 212(a)(9)(C) and:

1. You are in the United States; or
2. You have not been **physically outside** the United States for **more than** 10 years since the date of your last departure from the United States.

Who May Not Be Required to File For Consent to Reapply?

If any of the following apply to you, you may not be inadmissible under INA section 212(a)(9)(A) or (C), or both, and would **not** need to seek consent to reapply for admission to the United States:

1. You were inadmissible under INA 212(a)(9)(A), but your inadmissibility period has expired (see the **Detailed Descriptions of Grounds of Inadmissibility Under INA Sections 212(a)(9)(A) and (C) and Criminal Penalties Under INA Section 276** section of these Instructions to determine whether one or both of these grounds of inadmissibility apply to you);
2. You were allowed to withdraw your application for admission at the border, and you departed from the United States within the time specified for your departure;
3. You were refused entry at the border, but not formally removed;
4. You were refused admission as an applicant under the Visa Waiver Program;
5. You departed from the United States after having been unlawfully present for a year or more, in the aggregate, but you are not inadmissible under INA section 212(a)(9)(C)(i)(1) because, when returning to the United States through a U.S. port-of-entry, you were paroled into the United States;

NOTE: Even if you were paroled when returning to the United States, after having been unlawfully present for a year or more, in the aggregate, you may still be inadmissible under INA section 212(a)(9)(B). You may be eligible under INA section 212(a)(9)(B)(v) for a waiver of this ground of inadmissibility. For more information on waivers, visit www.uscis.gov/forms and review the instructions for Form I-601 or Form I-601A.

6. You were previously deported from the United States after having been ordered excluded, deported, or removed, but you are not inadmissible under INA section 212(a)(9)(C)(i)(I) because, when returning to the United States through a U.S. port-of-entry, you were paroled into the United States;

NOTE: Even if you were paroled when returning to the United States after having left under an order of exclusion, deportation, or removal, you may still be inadmissible under INA section 212(a)(9)(A), as discussed in the **Who Should File This Application** section of these Instructions.

7. You received an order of voluntary departure from an immigration judge and left the United States during the time period specified in your voluntary departure order;
8. You are an applicant for Registry under INA section 249;
9. You are in U nonimmigrant status and you are applying for adjustment of status under 8 CFR 245.24; or
10. You are an applicant for Temporary Protected Status (TPS) under INA section 244.

NOTE: Although you may be inadmissible under INA section 212(a)(9)(A) or (C), USCIS cannot consider your inadmissibility under these provisions for purposes of a TPS application because INA section 244(a)(5) states that a TPS applicant's current status may not be considered as part of the adjudication of TPS. Therefore, TPS applicants do not need to file Form I-212 to establish eligibility for TPS. Your inadmissibility under INA section 212(a)(9)(A) or (C), however, may remain relevant and be considered for the purposes of other immigration benefits.

Applicants for certain immigration benefits may be able to obtain a waiver of inadmissibility under INA section 212(a)(9)(A) or (C) instead of consent to reapply for admission. See the **Waiver of Inadmissibility Instead of Consent to Reapply** section of these Instructions.

Waiver of Inadmissibility Instead of Consent to Reapply

Some applicants do not have to file Form I-212 to overcome their inadmissibility under INA section 212(a)(9)(A) or (C). If you fall under one of the categories listed below, you may apply for a waiver of your grounds of inadmissibility by using the following applications below.

1. Use Form I-601, Application for Waiver of Grounds of Inadmissibility, if:

- A. You are an applicant for adjustment of status under the Nicaraguan Adjustment and Central American Relief Act (NACARA) section 202;
- B. You are an applicant for adjustment of status under the Haitian Refugee Immigration Fairness Act of 1998 (HRIFA) section 902;
- C. You are a T nonimmigrant applying for adjustment of status under 8 CFR 245.23; or
- D. You are an approved Violence Against Women Act (VAWA) self-petitioner seeking adjustment of status who is inadmissible under INA section 212(a)(9)(C).

NOTE: If you are inadmissible under INA section 212(a)(9)(A) and (C), you should file Form I-212 **and** Form I-601.

2. Use Form I-690, Application for Waiver of Grounds of Inadmissibility, under INA sections 245A or 210 if:

- A. You are an applicant for adjustment of status based on any legalization program under INA section 245A; or
- B. You are an applicant for adjustment of status based on any legalization program under INA section 210 (Special Agricultural Workers).

3. Use Form I-192, Application for Advance Permission to Enter as Nonimmigrant, if:

- A. You are an applicant for U nonimmigrant status. You must file your Form I-192 with your Form I-918, Petition for U Nonimmigrant Status. You do not need to file Form I-212 or a new waiver application if you are already in U nonimmigrant status and applying for adjustment of status under 8 CFR 245.24;
- B. You are an applicant for T nonimmigrant status. You may file Form I-192 with your Form I-914, Application for T Nonimmigrant Status; or
- C. You are an applicant for nonimmigrant status and inadmissible under INA section 212(a)(9)(C)(i)(I) for unlawful presence and subsequent reentry without admission or parole. You may be eligible for a waiver of inadmissibility authorizing you to enter as a nonimmigrant under INA section 212(d)(3)(A) at any time and as an alternative to consent to reapply, but only if you wish to seek admission to the United States as a nonimmigrant. This authorization is temporary and does not eliminate the INA section 212(a)(9)(C)(i)(I) ground of inadmissibility for immigrant purposes or future entries as a nonimmigrant. See the Instructions for Form I-192 to determine whether and how you may obtain a waiver of a ground of inadmissibility for authorization to enter as a nonimmigrant under INA section 212(d)(3)(A).

When Should You Apply for Consent to Reapply?

If You Are Inadmissible Under INA Section 212(a)(9)(A)

- 1. If you have already been excluded, deported, or removed from the United States and are currently outside the country, you **must** seek consent to reapply **before** returning to the United States.

2. If you have been ordered removed, but have not left the United States, and will be applying for an immigrant visa abroad, you may file your application for consent to reapply **before** you leave the United States under the removal order. If the agency, at its discretion, chooses to approve your application for consent to reapply, the approval is considered **conditional** until you actually depart the United States. Consent to reapply for admission in this situation applies only to inadmissibility under INA section 212(a)(9)(A). You cannot file an application for consent to reapply for admission while you are in the United States if you are inadmissible under INA section 212(a)(9)(C).
3. If you are ordered removed again **after** approval of consent to reapply, you will have to file a new application for consent to reapply. A conditional approval does not protect you from any other ground of inadmissibility that may result from your departure from the United States, including under INA section 212(a)(9)(B). See the **Where To File** section of these Instructions to determine whether you qualify for the advanced, conditional approval.

If You Are Inadmissible Under INA Section 212(a)(9)(C)

1. If you are inadmissible under INA section 212(a)(9)(C)(i), you are **permanently inadmissible** and will **always** need to request for consent to reapply for admission **BEFORE** you return to the United States.
2. You **cannot** file an application for consent to reapply until you have left the United States and have remained outside the country for at least 10 years since your last departure. After 10 years, you must request consent to reapply before you seek admission to the United States.

Detailed Description of Grounds of Inadmissibility Under INA Sections 212(a)(9)(A) and (C) and Criminal Penalties Under INA Section 276

If You Are Inadmissible Under INA Section 212(a)(9)(A)(i)

You must seek consent to reapply if you seek admission to the United States during the period specified in INA section 212(a)(9)(A)(i) and you are inadmissible because:

1. You were removed from the United States as an inadmissible alien through expedited removal proceedings under INA section 235(b)(1) that were initiated when you arrived at a U.S. port-of-entry; or
2. You were removed from the United States as an inadmissible, arriving alien under INA section 240, and the removal proceedings were initiated when you arrived at a U.S. port-of-entry.

The periods of time during which you must obtain consent to reapply for admission before you can apply for admission to the United States again are:

1. **5 years** from the date of removal, if you were only removed once;
2. **20 years** from the date of removal, if you were removed two or more times; or
3. **Forever**, if you are an alien who has been convicted of an aggravated felony (as defined in INA section 101(a)(43)). You must obtain consent to reapply for admission, even if you were not removed because of the aggravated felony conviction and even if you were convicted of the aggravated felony after you were removed from the United States.

If you seek admission to the United States before the appropriate inadmissibility period is over, you must file an application for consent to reapply for admission to the United States.

If you do not know the provision of law that was the basis for your exclusion, deportation, or removal from the United States, review the official documents you received during your proceedings. These documents should indicate the section of law that applies to your case.

NOTE: If you have remained outside the United States for the entire inadmissibility period, you are no longer required to seek consent to reapply. Under INA section 276(a)(2)(B), you also will not be subject to criminal liability under INA section 276(a) if you return lawfully to the United States through a U.S. port-of-entry. If you are granted consent to reapply for admission to the United States during the inadmissibility period, your inadmissibility under INA section 212(a)(9)(A)(i) no longer applies.

NOTE: Even if the inadmissibility period under INA section 212(a)(9)(A)(i) has already passed (you were required to remain abroad for 5 or 20 consecutive years, and have done so, and have not been convicted of an aggravated felony), you will become inadmissible under INA section 212(a)(9)(C) if you enter or attempt to enter the United States without being inspected and admitted or paroled.

If You Are Inadmissible Under INA Section 212(a)(9)(A)(ii)

You must obtain consent to reapply if you seek admission to the United States during the period specified in INA section 212(a)(9)(A)(ii) and you are inadmissible because:

1. You were removed from the United States under INA section 240;
2. You were ordered removed under any other provision of U.S. law; or
3. You departed from the United States on your own while an order of exclusion, deportation, or removal was outstanding (for example, you left after you were ordered removed, but before the U.S. Government could physically remove you based on your order of removal). This does not include a voluntary departure granted under INA section 240B if you departed the United States during the time period specified in your voluntary departure order.

The periods during which you must obtain consent to reapply before you can apply for admission to the United States again are:

1. **10 years** from the date of departure or removal, if you were only removed once;
2. **20 years** from the date of departure or removal, if you were removed two or more times; or
3. **Forever**, if you were convicted of an aggravated felony (as defined in INA section 101(a)(43)). You must obtain consent to reapply for admission, even if you were not removed because of the aggravated felony conviction and even if you were convicted of the aggravated felony after you were removed from the United States.

NOTE: If you have remained outside of the United States for the entire inadmissibility period, you are no longer required to file this application. Under INA section 276(a)(2)(B), you also will not be subject to criminal liability under INA section 276(a), if you return lawfully to the United States through a U.S. port-of-entry. If you are granted consent to reapply for admission to the United States during the inadmissibility period, your inadmissibility under INA section 212(a)(9)(A)(ii) no longer applies.

NOTE: Even if the inadmissibility period under INA section 212(a)(9)(A)(ii) has already passed (you were required to remain abroad for 10 or 20 years, and have done so, and have not been convicted of an aggravated felony), you will become inadmissible under INA section 212(a)(9)(C) if you enter or attempt to enter the United States without being inspected and admitted or paroled.

Removal Under Any Provision of U.S. Law

Removal under any provision of U.S. law **includes, but is not limited to:**

1. An exclusion and deportation order under **INA section 236** as it existed prior to April 1, 1997;
2. Arrest and deportation from the United States under any U.S. law prior to April 1, 1997;
3. Removal under **INA section 217** for a violation of terms of admission of the Visa Waiver Program;

4. Removal under **INA section 235(c)** for security and related grounds;
5. Removal as a stowaway under **INA section 235(a)(2)**;
6. Removal under **INA section 238(b)** after conviction of an aggravated felony;
7. Removal after revocation of the crewmember's landing permit under **INA section 252(b)**; and
8. Removal as an alien in distress under **INA section 250**.

If you do not know the provision of law that was the basis for your exclusion, deportation, or removal from the United States, review the official documents you received during your proceedings. These documents should indicate the section of law that applies to your case.

If You Are Inadmissible Under INA Section 212(a)(9)(C)

You must seek consent to reapply if, on or after April 1, 1997, you entered or attempted to reenter the United States without being admitted or paroled after:

1. You had been unlawfully present in the United States after April 1, 1997, for a total period of more than one year (INA section 212(a)(9)(C)(i)(I)); or
2. You had been ordered removed from the United States under any provision of the INA or any other provision of law before, on, or after April 1, 1997 (INA section 212(a)(9)(C)(i)(II)).

If you are inadmissible under INA section 212(a)(9)(C)(i), you are **permanently** inadmissible and will always need to request consent to reapply for admission **before** you return to the United States. Also, each time you reenter or attempt to reenter the United States without admission or parole, you incur a new inadmissibility under INA section 212(a)(9)(C). You may not obtain consent to reapply for readmission **unless** you leave the United States and remain outside the country for at least 10 years since your most recent departure.

NOTE: If you intend to seek admission to the United States as a **nonimmigrant** and are inadmissible under INA section 212(a)(9)(C)(i)(I) (unlawful presence for a total of more than one year, in the aggregate, and subsequent reentry without admission or parole), you may be eligible for a waiver of inadmissibility under INA section 212(d)(3)(A) instead of consent to reapply for admission. This authorization is temporary and does not eliminate INA section 212(a)(9)(C)(i)(I) ground of inadmissibility for future immigrant purposes.

Criminal Penalties Under INA Section 276

You may be subject to criminal prosecution and, if convicted, sentenced to prison under INA section 276, if you:

1. Have been denied admission;
2. Were excluded, deported, or removed from the United States; or
3. Have departed the United States while an order of exclusion, deportation, or removal is outstanding;

AND then you:

1. Entered or attempted to enter the United States; or
2. Are found in the United States unlawfully (including without consent to reapply for admission).

Your return to the United States, even with a visa, is unlawful if you were required to obtain consent to reapply for admission, but did not obtain that consent.

Even if the period during which you are required to obtain consent to reapply has expired, you may still be subject to criminal liability under INA section 276. This could happen if you return to the United States unlawfully, without being inspected and admitted or paroled, or if you return by fraud or any other unlawful means.

General Instructions

We provide free forms through the USCIS website. To view, print, or complete our forms, you should use the latest version of Adobe Reader, which you can download for free at <http://get.adobe.com/reader/>. If you do not have internet access, you may call the USCIS Contact Center and ask that we mail a form to you.

Signature. You (or your signing authority) must properly complete your application. USCIS will not accept a stamped or typewritten name in place of any signature on this application. If you are under 14 years of age, your parent or legal guardian may sign the application on your behalf. A legal guardian may also sign for a mentally incompetent person. If your application is not signed, or if the signature is not valid, we will reject your application. See 8 CFR 103.2(a)(7)(ii)(A). If USCIS accepts a request for adjudication and determines that it has a deficient signature, USCIS may reject or deny the request.

Validity of Signatures. USCIS will consider a photocopied, faxed, or scanned copy of an original benefit request with a handwritten signature as valid for filing purposes. The photocopy, fax, or scan must be of the original request or document containing the handwritten ink signature.

Filing Fee. See Form G-1055, available at www.uscis.gov/forms, for specific information about the fees applicable to this form.

Evidence. When you file your application, you must submit all evidence and supporting documents listed in the **What Evidence Must You Submit** and/or **Specific Instructions** sections of these Instructions.

Biometric Services Appointment

For Applicants Filing Form I-212 with USCIS. USCIS may require you to appear for an interview or provide biometrics (fingerprints, photograph, and/or signature) at any time to verify your identity, obtain additional information, and conduct background and security checks, including a check of criminal history records maintained by the Federal Bureau of Investigation (FBI), before making a decision on your application or petition. If we determine that a biometric services appointment is necessary, we will send you an appointment notice with the date, time, and location of your appointment. If you are currently overseas, your notice will instruct you to contact a U.S. Embassy, U.S. Consulate, or USCIS office outside the United States to schedule an appointment.

At your biometrics appointment, you must sign an oath reaffirming that:

1. You provided or authorized all information in the application;
2. You reviewed and understood all of the information contained in, and submitted with, your application; and
3. All of this information was complete, true, and correct at the time of filing.

If you do not attend your biometric services appointment, we may deny your application.

Copies. You should submit legible photocopies of requested documents unless the Instructions specifically instruct you to submit an original document. USCIS may request an original document at any time during our process. If we request an original document from you, we will return it to you after USCIS determines it no longer needs the original.

NOTE: If you submit original documents when they are not required or requested, **USCIS may destroy them after we receive them.**

Translations. If you submit a document with information in a foreign language, you must also submit a full English translation. The translator must sign a certification that the English language translation is complete and accurate, and that he or she is competent to translate from the foreign language into English. The certification must also include the translator's signature, printed name, the signature date, and the translator's contact information. USCIS Contact Center. For additional information on the application and Instructions about where to file, change of address, and other questions, visit the USCIS Contact Center at www.uscis.gov/contactcenter or call at **800-375-5283** (TTY **800-767-1833**). The USCIS Contact Center provides information in English and Spanish.

Disability Accommodations/Modifications. To request a disability accommodation/modification, follow the instructions on your appointment notice or at www.uscis.gov/accommodationsinfo.

How To Complete Form I-212

1. Type or print legibly in black ink.
2. If you need extra space to complete any item within this application, use the space provided in **Part 9. Additional Information** or attach a separate sheet of paper. Type or print your name and Alien Registration Number (A-Number) (if any) at the top of each sheet; indicate the **Page Number**, **Part Number**, and **Item Number** to which your answer refers; and sign and date each sheet.
3. Answer all questions fully and accurately. If a question does not apply to you (for example, if you have never been married and the question asks, "Provide the name of your current spouse"), type or print "N/A" unless otherwise directed. If your answer to a question which requires a numeric response is zero or none (for example, "How many children do you have" or "How many times have you departed the United States"), type or print "None" unless otherwise directed.

Specific Instructions

Part 1. Information About You

Item Number 1. Alien Registration Number (A-Number) (if any). Your A-Number is the number used to identify your immigration records. You can find this number on documents you received from USCIS, Immigration and Customs Enforcement (ICE), CBP, Department of Justice (DOJ) Executive Office For Immigration Review (EOIR), and Department of State (DOS).

Item Numbers 2.a. - 2.c. Your Full Name. Provide your full legal name.

Item Numbers 3.a. - 4.c. Other Names Used. Provide all other names you have ever used, including aliases, maiden name, and nicknames. If you need extra space to complete this section, use the space provided in **Part 9. Additional Information**.

Item Numbers 5.a. - 5.i. Mailing Address. Provide the address where you would like to receive written correspondence regarding your application.

Item Numbers 6. - 7.h. Physical Address. Provide your physical address if it is different from your mailing address.

Item Number 8. Social Security Number (if any). Provide your U.S. Social Security Number.

Item Number 9. USCIS Online Account Number (if any). You will only have a USCIS Online Account Number (OAN) if you previously filed a form that has a receipt number that begins with IOE. If you filed the form online, you can find your OAN in your account profile. If you mailed us the form, you can find your OAN at the top of the Account Access Notice we sent you. If you do not have a receipt number that begins with IOE, you do not have an OAN. The OAN is not the same as an A-Number.

Item Number 10. Sex. Indicate whether you are male or female as provided on your birth certificate issued at the time of birth or issued closest to the time of birth or in secondary evidence you provided to USCIS, if applicable.

Item Number 11. Date of Birth. Provide your date of birth in mm/dd/yyyy format.

Item Numbers 12. - 14. Place of Birth. Provide the name of the city or town, state or province, and country where you were born.

Item Number 15. Country of Citizenship or Nationality. Provide the name of the country where you are a citizen and/or national. This is not necessarily the country where you were born. If you do not have citizenship in any country, type or print “stateless” and provide an explanation in **Part 9. Additional Information**.

Item Numbers 16. - 17.b. Consent to Reapply Filed with Immigrant or Nonimmigrant Visa Applications. If you seek an immigrant visa or nonimmigrant visa and are or will file your application for consent to reapply with your immigrant or nonimmigrant visa application, provide the U.S. Department of State (DOS) Consular Case Number for your immigrant or nonimmigrant visa application (if available) and indicate the location of the U.S. Embassy or U.S. Consulate where you are seeking or will seek your visa.

Item Numbers 18.a. - 18.c. Consent to Reapply Filed with Adjustment of Status Applications. If you are seeking consent to reapply in connection with your application to adjust your status to that of a lawful permanent resident or if you have previously filed an application for adjustment of status, list the USCIS receipt number for your adjustment of status application and indicate the date and the USCIS office where you filed your application.

Item Numbers 19. - 20.c. Consent to Reapply Filed with Form I-601, Waiver of Grounds of Inadmissibility. Indicate whether you are submitting your application for consent to reapply with your Form I-601, Waiver of Grounds of Inadmissibility. If you select “No,” but have previously filed a Form I-601, provide the USCIS receipt number for that application and indicate the date and USCIS office where you filed your Form I-601.

Part 2. Reasons You Are Filing Form I-212

Item Numbers 1.a. - 4. Removal as an Arriving Alien. Complete this section if you were removed from the United States as an arriving alien in expedited removal proceedings under INA section 235(b)(1) or at the end of proceedings under INA section 240. Also indicate either the number of times you have been removed from the United States or if you were convicted of an aggravated felony at any time before or after removal from the United States. Provide the dates you were removed from the United States and the location from where you were removed (city or town and state). If you were convicted, you must submit court documents, police records, or criminal records showing the disposition of your offense. You also should submit the originals or certified copies that are properly authenticated.

Item Numbers 5.a. - 7.b. Removal as a Deportable Alien. Complete this section if you were removed from the United States as a deportable alien under INA section 240 or any other provision or law or if you departed while an order of removal was outstanding. Also indicate either the number of times you have been removed from the United States or if you were convicted of an aggravated felony at any time before or after removal from the United States. If you were convicted, you must submit court documents, police records, or criminal records showing the disposition of your offense. You also should submit the originals or certified copies that are properly authenticated. Also, provide the dates you were removed from the United States and the location from where you were removed (city or town and state).

Item Numbers 8. - 13. Entry After Unlawful Presence in the Aggregate of 1 Year. Complete this section if you entered or attempted to enter the United States without being admitted or paroled after having been unlawfully present in the United States on or after April 1, 1997, for a period of more than one year, in the aggregate. (See INA section 212(a)(9)(C)(i)(I).) List all periods when you were unlawfully present in the United States, beginning with the most recent period. Provide the dates and locations (city or town and state) for your departures and entries or attempted reentries. Attach evidence to establish that you have remained outside of the United States for 10 years since your last departure.

Item Numbers 14. - 17. Entry After Removal. Complete this section if you entered or attempted to enter the United States without being admitted or paroled after having been excluded, deported, or removed from the United States. List all the dates you were excluded, deported, or removed and when you entered or attempted to reenter into the United States. (See INA section 212(a)(9)(C)(i)(II).) Provide the dates and locations (city or town and state) for each exclusion, removal, and entry or attempted reentry. Attach evidence that you have remained outside of the United States for 10 years since your last departure.

Part 3. Reasons For Your Request For Permission to Reapply

Item Numbers 1.a. - 2. Indicate what immigration status you seek and explain why you would like to reenter the United States.

Item Numbers 3.a. - 4.b. U.S. Citizen or Lawful Permanent Resident Family Members (if any). Provide the name and your relationship to the U.S. citizen or lawful permanent resident family members (if any) with close ties to the United States. Indicate whether each relative is a U.S. citizen or lawful permanent resident or has some other status. Refer to the **What Evidence Must You Submit** section of these Instructions for more information about family members.

Part 4. Biographic Information

Provide the biographic information requested. Providing this information as part of your application may reduce the time you spend at your USCIS ASC appointment as described in the **Biometric Services Appointment** section of these Instructions.

Item Numbers 1. - 2. Ethnicity and Race. Select the boxes that best describe your ethnicity and race.

Categories and Definitions for Ethnicity and Race

- 1. Hispanic or Latino.** A person of Cuban, Mexican, Puerto Rican, South or Central American, or other Spanish culture or origin, regardless of race. (**NOTE:** This category is only included under Ethnicity in **Part 4., Item Number 1.**)
- 2. American Indian or Alaska Native.** A person having origins in any of the original peoples of North and South America (including Central America), and who maintains tribal affiliation or community attachment.
- 3. Asian.** A person having origins in any of the original peoples of the Far East, Southeast Asia, or the Indian subcontinent including, for example, Cambodia, China, India, Japan, Korea, Malaysia, Pakistan, the Philippine Islands, Thailand, and Vietnam.
- 4. Black or African American.** A person having origins in any of the black racial groups of Africa.
- 5. Native Hawaiian or Other Pacific Islander.** A person having origins in any of the original peoples of Hawaii, Guam, Samoa, or other Pacific Islands.
- 6. White.** A person having origins in any of the original peoples of Europe, the Middle East, or North Africa.

Item Number 3. Height. Select the values that best match your height in feet and inches. For example, if you are five feet and nine inches, select “5” for feet and “09” for inches. Do not enter your height in meters or centimeters.

Item Number 4. Weight. Enter your weight in pounds. If you do not know your weight or need to enter a weight under 30 pounds or over 699 pounds, enter “000.” Do not enter your weight in kilograms.

Item Number 5. Eye Color. Select the box that best describes the color of your eyes.

Item Number 6. Hair Color. Select the box that best describes the color of your hair.

Part 5. Additional Information if Filing with CBP

USCIS Form G-325A is no longer required to be submitted with this application. All necessary data elements are now collected on Form I-212.

If you are filing this application with Customs and Border Protection (CBP), provide the information requested in **Item Numbers 1.a. - 40.c.**

Item Numbers 1.a. - 4.b. Address History. Provide physical addresses for everywhere you have lived during the last five years, whether inside or outside the United States. Also provide the dates of residence, indicating when you lived at the location listed. If you are unsure of the exact date, provide the closest approximate date to the best of your knowledge. Provide your current address first. If you need extra space to complete this section, use the space provided in **Part 9. Additional Information.**

Item Numbers 5. - 12.b. Employment History. Provide your employment history for the last five years, whether inside or outside the United States. Also provide the dates of employment. If you are unsure of the exact date, provide the closest approximate date to the best of your knowledge. Provide the most recent employment first. If you need extra space to complete this section, use the space provided in **Part 9. Additional Information.**

Item Numbers 13.a. - 26. Information About Your Parents. Provide the information requested about your mother and father.

Item Numbers 27. - 40.c. Information About Your Marital History. If you have ever been married, provide information about your current marriage and any previous marriages. If you have had more than one previous marriage, use the space provided in **Part 9. Additional Information** to provide the information below.

Part 6. Applicant's Contact Information, Certification, and Signature

If you used anyone as an interpreter to read the Instructions and questions on this application to you in a language in which you are fluent, the interpreter must fill out this section and sign and date the application.

Part 7. Interpreter's Contact Information, Certification, and Signature

If you used anyone as an interpreter to read the Instructions and questions on this application to you in a language in which you are fluent, the interpreter must fill out this section and sign and date the application.

Part 8. Contact Information, Declaration, and Signature of the Person Preparing this Application, if Other Than the Applicant

The person who completed your application, if other than the applicant, must sign this section. If the same individual acted as your interpreter and your preparer, then that person should complete both **Part 7.** and **Part 8.** A stamped or typewritten name in place of a signature is not acceptable.

We recommend that you print or save a copy of your completed application to review in the future and for your records. We recommend that you review your copy of your completed application before you come to your biometric services appointment at a USCIS ASC. At your appointment, USCIS will permit you to complete the application process only if you are able to confirm, under penalty of perjury, that all of the information in your application is complete, true, and correct. If you are not able to make that attestation in good faith at that time, USCIS will require you to return for another appointment.

What Evidence Must You Submit?

You must submit all evidence requested in these Instructions with your application. If you fail to submit required evidence, USCIS may reject or deny your application in accordance with 8 CFR 103.2(b)(1) and these Instructions.

You must submit the following evidence.

- 1. Deportation/Removal Proceedings.** Attach copies of all correspondence and documentation that you have relating to your deportation or removal proceedings and your removal from the United States (if applicable). Remember to retain the originals for your records.
- 2. Relatives.** If you listed any relative in **Part 3. Reasons for Your Request for Permission to Reapply, Item Numbers 3.a. - 3.c.**, you must submit evidence of your relationship to that person. In addition, if your relative is a U.S. citizen, you must submit proof of the person's U.S. citizenship. If he or she is not a U.S. citizen, you must provide:
 - A. Your relative's full name;
 - B. Date of birth;
 - C. Place of birth;
 - D. Place of admission to, or entry into, the United States;
 - E. Current immigration status;
 - F. Immigration status at the time of entry; and
 - G. A-Number, if known.
- 3. Inadmissible under INA section 212(a)(9)(C).** If you are inadmissible under INA section 212(a)(9)(C), submit evidence of:
 - A. Your removal from the United States;
 - B. The date you entered or attempted to reenter the United States without being admitted or paroled;
 - C. The date of your last departure from the United States; and
 - D. Evidence of your absence from the United States for 10 years since your last departure.

You should also submit evidence that relates to your departure and your absence from the United States for at least 10 consecutive years. Evidence may include:

- A. Copies of entry/exit stamps from foreign countries in your passport;
- B. Receipts for, or copies of, airplane tickets;
- C. Registration of your residence abroad;
- D. Utility bills in your name at the foreign address;
- E. Employment records from your foreign job; and
- F. Any other information that you believe will establish your departure and absences from the United States.

NOTE: The agency adjudicating your consent to reapply application will consider any evidence.

- 4. Additional Required Evidence When Seeking Permission to Reapply for Admission to the United States Through CBP at a U.S. Port-of-Entry.** In addition to the evidence listed above, you must submit the following documents.

A. Proof of Citizenship.

NOTE: A driver's license is **not** considered proof of citizenship, but you may use it with another document to establish identity.

B. Other Names Used. Provide all other names you have ever used including aliases, maiden name, and nicknames. If you need extra space to complete this section, use the space provided in **Part 9. Additional Information**. You should file evidence of legal name changes, such as marriage certificates, divorce decrees, adoption decrees, and naturalization certificates with your application. Copies are acceptable.

C. Criminal Records. Each application should contain your official police record, or evidence that no police record exists, from all countries of prior residence and from your country of citizenship or nationality. These records are valid for 15 months from the date the foreign law enforcement authority issued you the record. If your records are older than 15 months, you will need to obtain a new official record and submit it with your Form I-212.

NOTE for Canadian Filers: You can obtain the above information from the Royal Canadian Mounted Police (RCMP) by submitting your fingerprints on Form C-216C. The returned Civil Product and any accompanying records must be dated and endorsed by the RCMP and submitted with your Form I-212 within 15 months of issuance. For instructions, addresses, and payment information, visit the RCMP website at www.rcmp-grc.ca.

5. Additional Evidence to Support Your Application. Approval of your Form I-212 is at the discretion of the agency with jurisdiction over your application. For information on which agency will process and adjudicate your application, visit the USCIS website at www.uscis.gov/I-212 and click on “Where To File.”

Approval of an application for consent to reapply is discretionary. This means the adjudicator will weigh the favorable and unfavorable factors presented in your case to determine whether to approve your application. We encourage you to submit as much evidence as possible to explain why you believe that your application should be approved. You should describe the favorable and unfavorable factors in your case and explain why you think the favorable factors should be given more weight.

Some favorable factors may include, but are not limited to:

- A. Close family ties in the United States;
- B. Hardship to your relatives who are U.S. citizens or lawful permanent residents, or to yourself, or your employer in the United States;
- C. Evidence of reformation and rehabilitation;
- D. Length of lawful presence in the United States and your immigration status while you were lawfully present;
- E. Evidence of respect for law and order, good moral character, and family responsibilities or intent to hold family responsibilities;
- F. Absence of significant undesirable or negative factors;
- G. Eligibility for a waiver of other inadmissibility grounds; and
- H. Likelihood that you will become a lawful permanent resident in the near future.

Some unfavorable factors may include, but are not limited to:

- A. Evidence of bad moral character, including criminal tendencies reflected by past convictions or an ongoing unlawful activity or continuing police record;
- B. Repeated violations of U.S. immigration laws and a willful disregard for other laws;
- C. Likelihood of becoming public charge;
- D. Absence of close family ties or hardships;
- E. Fraudulent marriage to a U.S. citizen for the purpose of gaining an immigration benefit;
- F. Unauthorized employment in the United States;
- G. Lack of the skills required for a position for which a labor certification could be issued; and
- H. Serious violations of U.S. immigration laws and no evidence of rehabilitation or reformation.

Evidence submitted in support of your application may include:**A.** Affidavits from you or other individuals;

NOTE: Unsupported assertions (in an affidavit by you or others) are not sufficient to demonstrate why your application should be approved as a matter of discretion. All claims made in affidavits should be supported by evidence or you should explain in detail why you cannot obtain such evidence.

B. Evidence of family ties in the United States;**C.** Police reports from countries where you lived;**D.** Complete court records regarding any arrests, charges, or convictions from any country;**E.** Evidence of rehabilitation, if applicable;**F.** Evidence that your admission to the United States would not be against national security or public safety;**G.** Medical reports;**H.** Employment records;**I.** Evidence of hardship to you, your relatives, or other individuals that would result if you were denied admission to the United States;**J.** Documentation related to the impact of family separation;**K.** Documentation of the conditions in the country where your family would have to relocate if your Form I-212 was denied; and**L.** Any other evidence that can establish why you should be granted permission or consent to reapply for admission to the United States.

Where To File?

Please see our website at www.uscis.gov/I-212 for the most current information about where to file this application.

Address Change

Filing a change of address with USCIS. If you are not a U.S. citizen, you must notify USCIS of your new address within 10 days of moving from your previous residence. For information on changing your address, go to our website at www.uscis.gov/addresschange, or call the USCIS Contact Center.

NOTE: Do not submit a change of address request to USCIS Lockbox.

Filing a change of address with CBP. You must inform CBP if you change your address. For information on filing a change of address, go to the CBP website at www.cbp.gov (search for Form I-212).

Filing a change of address with EOIR. If you are already in proceedings in Immigration Court, you must also notify the Immigration Court on EOIR Form 33/IC, Alien's Change of Address Form/Immigration Court, of any changes of address within five days of the change in address. The EOIR Form 33/IC is available on the EOIR website at <http://www.justice.gov/eoir/formslist.htm>.

Processing Information

Initial Processing. Once USCIS accepts your application, we will check it for completeness. If you do not properly complete this application, you will not establish a basis for your eligibility and we may reject or deny your application.

Requests for More Information. USCIS may request that you provide more information or evidence to support your application. We may also request that you provide the originals of any copies you submit. If we request an original document from you, we will return it to you after USCIS determines it is no longer needed.

Requests for Interview. We may request that you appear at a USCIS office for an interview based on your application. During your interview, USCIS may require you to provide your biometrics to verify your identity and/or update background and security checks.

Decision. The decision on Form I-212 involves a determination of whether you have established eligibility for the immigration benefit you are seeking. USCIS will notify you of our decision in writing.

Approval of Application and Validity. If your application is approved, your permission to reapply for admission to the United States will be valid indefinitely, unless revoked by the agency that granted the approval. If you obtained consent to reapply for nonimmigrant purposes, the approval is also valid for future immigrant or nonimmigrant purposes. If you incur a new inadmissibility under INA section 212(a)(9)(A) or (C) after approval of this application, you will need to apply for a new consent to reapply for admission.

USCIS Forms and Information

To ensure you are using the latest version of this application, visit www.uscis.gov.

Penalties

If you knowingly and willfully falsify or conceal a material fact or submit a false document with your Form I-212, the agency adjudicating your application will deny your application and may deny any other immigration benefit. In addition, you will face severe penalties provided by law and may be subject to criminal prosecution.

DHS Privacy Notice

AUTHORITIES: The information requested on this application, and the associated evidence, is collected under Immigration and Nationality Act section 212(a)(9)(A) or (C).

PURPOSE: The primary purpose for providing the requested information on this application is to obtain consent from the Secretary to reapply for admission to the United States before you can lawfully return to the United States. DHS will use the information you provide to grant or deny the immigration benefit you are seeking.

DISCLOSURE: The information you provide is voluntary. However, failure to provide the requested information, including your Social Security number (if applicable), and any requested evidence, may delay a final decision or result in denial of your application.

ROUTINE USES: DHS may share the information you provide on this application, and any additional requested evidence with other federal, state, local, and foreign government agencies and authorized organizations in accordance with approved routine uses, as described in the associated published system of records notices [DHS/USCIS/ICE/CBP-001 Alien File, Index, and National File Tracking System, DHS/USCIS-007 Benefits Information System, and DHS/USCIS-018 Immigration Biometric and Background Check] and the published privacy impact assessment [DHS/USCIS/PIA 016(a) Computer Linked Application Information Management System (CLAIMS 3) and Associated Systems], which can be found at www.dhs.gov/privacy. DHS may also share this information, as appropriate, for law enforcement purposes or in the interest of national security.

Paperwork Reduction Act

USCIS may not conduct or sponsor an information collection, and you are not required to respond to a collection of information, unless it displays a currently valid Office of Management and Budget (OMB) control number. The public reporting burden for this collection of information is estimated at 1.687 hours per response, including the time for reviewing instructions, gathering the required documentation and information, completing the application, preparing statements, attaching necessary documentation, and submitting the application. The collection of biometrics is estimated to require 1 hour and 10 minutes. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden, to: U.S. Citizenship and Immigration Services, Office of Policy and Strategy, Regulatory Coordination Division, 5900 Capital Gateway Drive, Mail Stop #2140, Camp Springs, MD 20588-0009; OMB No. 1615-0018. **Do not mail your completed Form I-212 to this address.**